

with an adverse eye (*e*); but if a person be merely a trustee to preserve contingent remainders, the reasons for excluding him are held not to be applicable (*f*).

15. **Factors, &c.**—In the absence of any special authority contained in the instrument of trust (*g*), a *trustee* or *executor* who happens to be a factor (*h*), broker (*i*), commission agent (*j*), or auctioneer (*k*), can make no profit in the way of his business from the estate committed to his charge. So trustees who are *bankers* cannot in their character of trustees borrow money of themselves, as bankers, at [*281] *compound interest, though it be the usage of the bank with ordinary customers (*a*).

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| (<i>e</i>) <i>Sykes v. Hastings</i> , 11 Ves. 364, <i>per</i> Lord Eldon, | (<i>h</i>) <i>Scattergood v. Harrison</i> , Mos. 128. |
| (<i>f</i>) <i>Sutton v. Jones</i> , 15 Ves. 587, <i>per</i> Lord Eldon. | (<i>i</i>) <i>Arnold v. Garner</i> , 2 Ph. 231. |
| (<i>g</i>) <i>Douglas v. Archbutt</i> , 2 De G. & J. 148; <i>Re Sherwood</i> , 3 Beav. 338. | (<i>j</i>) <i>Sheriff v. Axe</i> , 4 Russ. 33. |
| | (<i>k</i>) <i>Matthison v. Clarke</i> , 3 Drew. 3; <i>Kirkman v. Booth</i> , 11 Beav. 273. |
| | (<i>a</i>) <i>Crosskill v. Bower</i> , 32 Beav. 86. |

In Kentucky no sum is fixed, but a reasonable amount is allowed; *Lane v. Coleman*, 8 B. Mon. 571; *Greening v. Fox*, 12 B. Mon. 190, from five to ten per cent has been allowed; *M'Cracken v. M'Cracken*, 6 Mon. 342; *Floyd v. Floyd*, 7 B. Mon. 290; *Bowling v. Cobb*, 6 B. Mon. 358.

In Missouri executors receive not more than six per cent, but a gross sum may be allowed; *Smart v. Fisher*, 7 Mo. 581.

In California the trustee must be paid from the income; *Ellig v. Naglee*, 9 Cal. 683.

In Ohio executors are allowed a compensation, but trustees get only their expenses; *Gilbert v. Sutliff*, 3 Ohio St. 149.

In Illinois executors receive a compensation, but trustees do not; *Constant v. Matteson*, 22 Ill. 546; see *Hough v. Harvey*, 71 Ill. 72.

For further consideration of compensation, see *Perry on Trusts*, § 918, n.; and note to *Gibson's case*, 17 Am. Dec. 266.

In the provinces a commission is allowed. It may be a lump sum; *Stinson v. Stinson*, 8 R. R. 560; or a reasonable amount; *Re Toronto Harbor Com'rs*, 28 Chy. 195; *Re Berkeley's Trusts*, 8 R. R. 193; *McDonald v. Davidson*, 60 R. 320; *Deedes v. Graham*, 20 Chy. 258; *In re Town Trust*, 22 Chy. 377; *Heron v. Moffatt*, 7 P. R. 438; the trustee shall receive payment for all expenses incurred by him; *Life Association v. Walker*, 24 Chy. 293; *Bevis v. Boulton*, 7 Chy. 39; *Meighen v. Buell*, 24 Chy. 503; *Colonial Trust Co. v. Cameron*, 24 Chy. 548; including maintenance and education; *Stewart v. Fletcher*, 16 Chy. 235; where compensation is provided for in trust deed, it will be adhered to; *Heron v. Moffatt*, 7 P. R. 438; *Loveless v. Clarke*, 24 Chy. 14; *City Bank v. Mulson*, 3 Chy. Chamb. 334; when compensation will or will not be allowed, see *Wilson v. Proudfoot*, 15 Chy. 103; *Bald v. Thompson*, 17 Chy. 154.